ANSWER KEY

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MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (Honours)/ MGU-BBA (Honours)/ MGU-BCA (Honours)

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Fifth SEMESTER

Discipline Specific Elective (DSE) - MG5DSEPOL300, MG5DSEPJM301 - HUMAN RIGHTS

(2024 ADMISSION ONWARDS)

PART A

1. Third World Approach/Postcolonial approach

2. 18 targets/8 goals [3 new targets were added in 2007]

3. Justice P. N. Bhagwati and Justice V. R. Krishna Iyer

4. Protection of Women from Domestic Violence Act, 2005

5. Glorious Revolution

6. ICCPR

7. Second Generation of human rights

8. Three times

9. Prakash Singh v. Union of India (2006)

10. Article 17

PART B

11. Digital inequality- impacts on social justice-creating unequal access to education-healthcare- employment- government services- information- people from economically weaker sections, rural communities and marginalized groups face greater barriers- bridging the digital divide through affordable internet-digital literacy- accessible technology promotes equal opportunities and social inclusion.

12. CEDAW-Convention on the Elimination of All Forms of Discrimination against Women-international treaty promoting gender equality- requires states to eliminate discrimination against women- education, employment, healthcare, politics and family life- encourages legal reforms- equal opportunities- protection against gender-based violence-strengthening women's rights worldwide.

13. Protection of Women from Domestic Violence Act, 2005- defines domestic violence broadly to include physical, sexual, verbal, emotional and economic abuse- also covers threats and harassment- Act protects women in domestic relationships- provides remedies such as protection orders- residence orders- monetary relief- custody orders and compensation.

14. Prisoners in India- face several human rights concerns- overcrowding- poor sanitation- inadequate healthcare- custodial violence- torture- insufficient legal assistance- undertrial prisoners may remain incarcerated for long periods- discrimination and limited rehabilitation opportunities-protecting prisoners' dignity requires legal safeguards- prison reforms- accountability and humane treatment.

15. Environmental justice- fair distribution of environmental benefits and burdens among all people- regardless of income, caste, gender or ethnicity- ensures equal protection from pollution-access to natural resources- participation in environmental decisions- emphasizes accountability- sustainable development- protection of vulnerable communities from environmental harm.

16. Human dignity- foundation of Fundamental Rights- human beings are end in themselves- guaranteed by the Indian Constitution- various Articles (14-32) protect equality and freedoms- prevents exploitation and humiliation-life with personal liberty- assures the right to life with dignity- rights also prevent arbitrary state action and promote justice- autonomy, equality and individual development.

17. Human rights education- promotes awareness of fundamental freedoms- equality- justice- democratic values- encourages citizens to respect diversity- challenge discrimination- hold authorities accountable- develop critical thinking and civic responsibility- strengthens democratic participation- human rights education helps prevent abuses- builds an informed, tolerant and inclusive society.

18. UNHCR- United Nations High Commissioner for Refugees- protects refugees- asylum seekers- stateless people- provides emergency shelter, food, healthcare, legal assistance- protection from forced return to danger- supports voluntary repatriation- local integration- resettlement- work promotes refugee rights through international cooperation and humanitarian assistance.

19. UN Convention on the Rights of the Child- establishes children's rights to survival- development- protection- participation- emphasizes the best interests of the child and protection from exploitation and abuse- NCPCR's mandate reflects these principles- monitoring child-rights laws- investigating violations- reviewing safeguards- recommends measures for effective implementation in India.

20. Development-induced displacement -occurs when people lose homes-land and livelihoods- community networks -because of dams- industries- mines and infrastructure projects- cause poverty, homelessness, cultural loss and inadequate rehabilitation- indigenous communities

and vulnerable groups- particularly affected-human rights protection- requires consultation- fair compensation- rehabilitation- livelihood restoration- respect for affected people's dignity.

PART C

21. Human rights are universal rights- belonging to every person- Civil rights protect individual freedoms and equal treatment within society- Fundamental Rights are constitutionally guaranteed rights under Part III of the Indian Constitution- Human rights establish universal standards- civil rights ensure social and political equality- Fundamental Rights provide legal remedies against violations- together they promote democracy, justice, liberty, equality, dignity and accountability.

22. Refugees and migrants- face major human rights challenges- discrimination- exploitation- trafficking- unsafe journeys- inadequate healthcare- restricted education-Refugees flee persecution or conflict-migrants move for various reasons- non-refoulement protects refugees against forced return to danger- international cooperation- legal protection- humane treatment- access to essential services- protection against exploitation- essential for safeguarding their dignity and rights.

23. Armed Forces (Special Powers) Act, 1958- enacted to address security challenges in designated disturbed areas- empowers armed forces to maintain public order- including certain search, arrest and force-related powers- Section 4 grants special powers- Section 6 requires prior Central Government sanction for prosecution- critics raise concerns about excessive force- accountability- arbitrary detention- alleged human rights violations.

24. Women face sexual violence- trafficking- displacement- gender-based discrimination- Children experience recruitment into armed groups- family separation- injuries-exploitation- disrupted education- international humanitarian law- the Geneva Conventions- the Convention on the Rights of the Child- provide protection-UN Security Council Resolution 1325- addresses women, peace and security-suggested measures- humanitarian assistance- safe shelters- family reunification- rehabilitation- accountability for violations.